

Syllabus

RAMOS *v.* LOUISIANACERTIORARI TO THE COURT OF APPEAL OF LOUISIANA,
FOURTH CIRCUIT

No. 18–5924. Argued October 7, 2019—Decided April 20, 2020

In 48 States and federal court, a single juror’s vote to acquit is enough to prevent a conviction. But two States, Louisiana and Oregon, have long punished people based on 10-to-2 verdicts. In this case, petitioner Evangelisto Ramos was convicted of a serious crime in a Louisiana court by a 10-to-2 jury verdict. Instead of the mistrial he would have received almost anywhere else, Ramos was sentenced to life without parole. He contests his conviction by a nonunanimous jury as an unconstitutional denial of the Sixth Amendment right to a jury trial.

Held: The judgment is reversed.

2016–1199 (La. App. 4 Cir. 11/2/17), 231 So. 3d 44, reversed.

JUSTICE GORSUCH delivered the opinion of the Court with respect to Parts I, II–A, III, and IV–B–1, concluding that the Sixth Amendment right to a jury trial—as incorporated against the States by way of the Fourteenth Amendment—requires a unanimous verdict to convict a defendant of a serious offense. Pp. 89–95, 96–100, 105–109.

(a) The Constitution’s text and structure clearly indicate that the Sixth Amendment term “trial by an impartial jury” carries with it *some* meaning about the content and requirements of a jury trial. One such requirement is that a jury must reach a unanimous verdict in order to convict. Juror unanimity emerged as a vital common law right in 14th-century England, appeared in the early American state constitutions, and provided the backdrop against which the Sixth Amendment was drafted and ratified. Postadoption treatises and 19th-century American legal treatises confirm this understanding. This Court has commented on the Sixth Amendment’s unanimity requirement no fewer than 13 times over more than 120 years, see, *e. g.*, *Thompson v. Utah*, 170 U. S. 343, 351; *Patton v. United States*, 281 U. S. 276, 288, and has also explained that the Sixth Amendment right to a jury trial is incorporated against the States under the Fourteenth Amendment, *Duncan v. Louisiana*, 391 U. S. 145, 148–150. Thus, if the jury trial right requires a unanimous verdict in federal court, it requires no less in state court. Pp. 89–93.

(b) Louisiana’s and Oregon’s unconventional schemes were first confronted in *Apodaca v. Oregon*, 406 U. S. 404, and *Johnson v. Louisiana*,